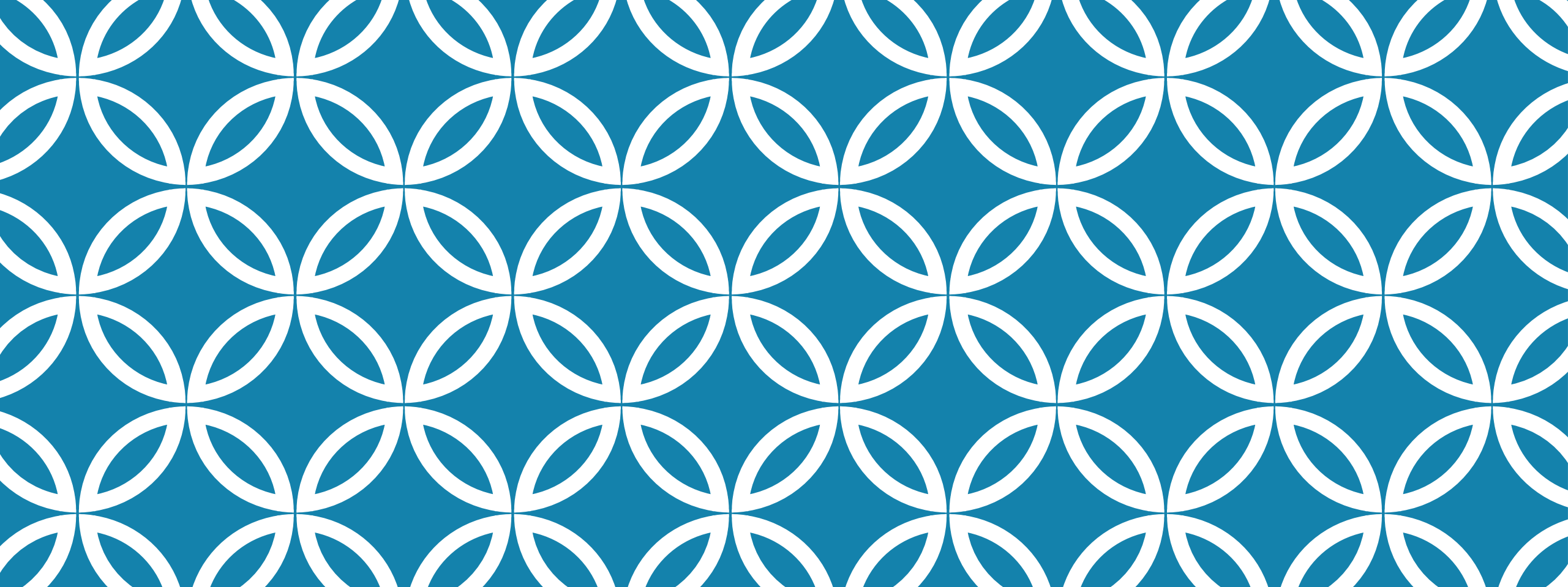
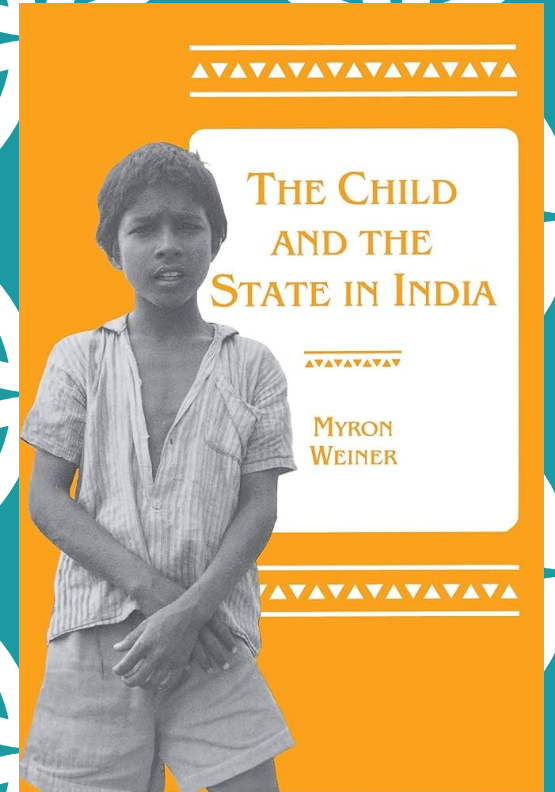




PUBP309: EDUCATION POLICY

Child Labour in India - Problem and Legislation

Shivakumar
Jolad
FLAME
University



CHILD AND THE STATE IN INDIA (1990) CH1- THE ARGUMENT

Slide support
ISHA DOSHI

THE PROBLEM EXPLAINED

- In most modern states: state is the ultimate protector of children
 - **But in India: Primary education isn't compulsory + child labour isn't illegal**
 - 82.2 million children between 6-14 years are not in school, 13.6-44 million work as child labourers
 - Indian law prohibits child labour in factories, but not in cottage industries, family households, restaurants or agriculture
- Time period: 1985-1990**

THE PROBLEM EXPLAINED: COUNTRY COMPARISONS

- Poverty has never historically been a deterrent for introducing compulsory education, neither has low per capita income
- Eg: African countries like Botswana, Gambia, Ghana, Libya, etc.
- China: *comparable* illiteracy rate to India 40 years ago, has now *halved*
- **Governments even introduced compulsory education when poverty rates were high eg: Germany, Scotland, Austria, Japan**
- BUT India: between 1961-1981 total number of illiterates **increased** by 5 million per year

**Time period: 1985-
1990**

THE PROBLEM EXPLAINED: INDIA'S PROBLEM

Core Problem: belief system

- **Indian view of social order and roles of upper and lower class**

"The Indian position rests on deeply held beliefs that there is a division between people who work with their minds and rule and people who work with their hands and are ruled, and that education should reinforce rather than break down this division"

Closely linked to religious notions that underlie the hierarchical caste system

GAP IN RHETORIC AND REALITY

Rhetoric:

Universal Primary Education: Gopal Krishna Gokhale, provincial governments in the 1930s, Indian Constitution in 1950, Planning Commission, Parliament, State Governments, Compulsory Primary Education Acts passed

Legislations for Restricting Child Labour: passed by the British early 1900s, Royal Commission on Labour in 1932, Indian Constitution, acts passed by Parliament

Ministry of Labour set up committee for children

GAP IN RHETORIC AND REALITY

Reality:

1981 Census:

- 82.2 million of 158.8 million children between 6-14 years not in school
- Only 52.2 million of 123.7 million rural children between 6-14 years in school
- 24.4 million of 35.1 million urban children between 6-14 years in school
- Only 41.4% of India's population above 5 was literate

Moreover, **increase** in number of illiterates over the years

TABLE 1.4

Population, Literacy, and Illiteracy, 1901-1981 (in millions)

<i>Increase in</i>					<i>Literacy Rate</i>
Year	<i>Population</i>	<i>Literates</i>	<i>Illiterates</i>	<i>Illiterates</i>	(percent)
1901	235.1	12.6	222.5		5.4
1911	248.2	14.7	233.5	+ 11.0	5.9
1921	246.7	17.7	229.0	- 4.5	7.2
1931	273.4	26.0	247.4	+ 18.4	9.5
1941	312.0	50.2	261.8	+ 14.4	16.1
1951	353.1	58.9	294.2	+ 32.4	16.7
1961	428.0	102.6	325.5	+ 31.3	24.0
1971	533.5	157.3	376.2	+ 50-.7	29.5
1981	665.3	241.0	424.3	+ 48.1	36.2

Source: *Recent Literacy Trends in India, Occasional Paper No. 1 of 198?* (New Delhi: Registrar General and Census Commissioner, 1987), p. 6. These figures for all years exclude Assam, where the census was not taken in 1981. Including Assam (with estimates for 1981), the number of illiterates was 333 million in 1961, 386 million in 1971, and 437 million in 1981.

MAIN ARGUMENTS

- **Government has accepted child labour as a “harsh reality”**
- Haven't given up goals of ending child labour, but cannot be implemented currently because of prevailing social and economic conditions:
 - Chronic poverty
 - Parents do not believe they will benefit economically through education
 - Belief that children acquire skills through employment not education
 - Employers prefer children for cheap labour, supple fingers, more pliable

MAIN ARGUMENTS

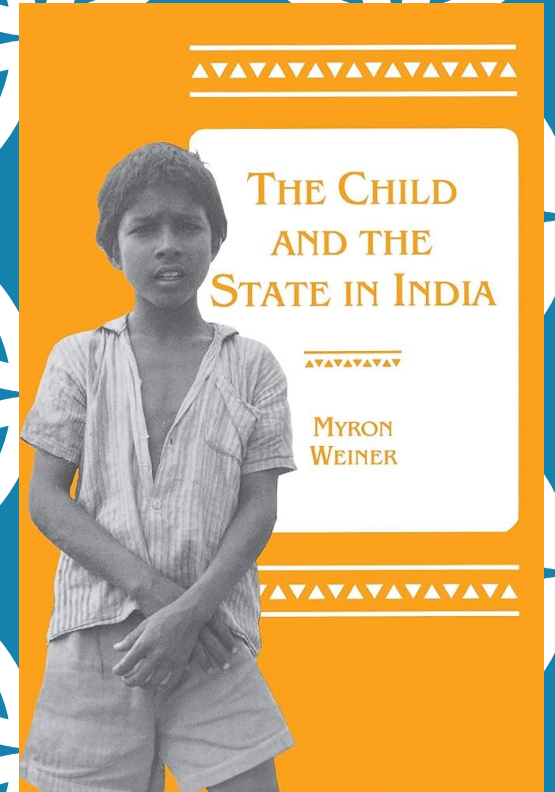
- State thus ought not to intervene as a matter of “social justice” for the poor
- With improvement in employment and income of the poor, they will automatically send their children to school
- Changes in technology will reduce demand for unskilled child labour
- Improvement in national budget will allow government to spend more on primary edu.

COUNTER EVIDENCE FROM OTHER COUNTRIES

- **No clear relationship between literacy and per capita income**
- Spectacular primary-school attendance rates achieved even before rapid economic growth
- Resource constraints are also not a sufficient explanation

TAKEAWAYS

- Lack of India's efforts stem from attitude of important actors towards child labour and compulsory primary education
- **Most harmful - attitudes of officialdom - government, ministries, committees, ministries**
- Very little political support for both



INDIA'S WORKING CHILDREN

Smriti Jalihal

WHO ARE THESE CHILDREN?

From families who have a very low per capita income

Children are forced to work

Agricultural workers, bonded laborers

Ex- untouchables

University of Hyderabad- Study showed that 9,00,000 boys and 6,46,000 girls enrolled in grade 1 in Andhra Pradesh and 2,30,000 boys and 1,26,000 girls enrolled in grade 5

All child laborers are not reported as some help their parents in small cottage industries

Time period: 1985-1990

LEGISLATION

Laws: Factories Act of 1948 (Units employing ten or more workers using power and 20 or more workers not using power, cannot employ children)

Employment of Children Act (Prohibition of the employment of children under 14)

WHERE DO THESE CHILDREN USUALLY WORK?

Cottage Industries

Household industries

Factory sheds

Diamond Cutting

Carpet industry

Textile industry

Brassware and **bidi manufacturing**

Rag pickers

HOW MANY CHILD LABORERS?

NSSO (1983): 17.4 million child laborers

Operations Research Group of Baroda: 44 million



Andhra Pradesh has the highest incidence of child labor (also lowest literacy rate)

Kerala has the lowest incidence of child labor (highest literacy rate)

BANGALORE CITY MARKET

Case study of a child worker who became a boss and employed more child workers (cyclical effect): more profits as you do not need to pay the minimum wage

Numerous children work as shop assistants- few in school who work part time, others work full time.

Takes a lot of years for pay to increase

Increased because the number of stalls and restaurants have also increased

STREET CHILDREN OF SECUNDERABAD

Numerous children working as **beggars, rag pickers, prostitutes and vendors**

Violence at home

Centres like Prema Seva Sadan that feeds and houses children who have fled from domestic households

Poor parents come there to admit their children

MATCH INDUSTRY OF SIVAKASI

Most publicized centre of child labor in India

Largest single concentration of child labor in the world (45,000)

Children employed in match, fireworks and printing industries

Children from nearby villages, agent

Child labor is legally permitted in the small “family owned” workshops, but not in the factories

Violation of Minimum Wages Act

Remedial Measures?! Wages for children to be raised, higher excise tax, children should not have to travel so much, provision of lunches and free health care at workplace

GLASS FACTORIES OF FIROZABAD

Children are paid 10 rupees per 12 hour shift and their daily wage doubles when they are old enough to blow glass

Labor Law Department of Government of Uttar Pradesh- 13% of the 70,000 workers there are children

POTTERY INDUSTRY OF KHURJA

5000 children employed

Most children are the kids of potters who work in the same factories

Children who joined the factory earlier, earned more as compared to others later in life

Relation between early entrance into labor force, nutrition and life time wage earning capacity

VILLAGE NEAR PUNE

Unpaid domestic work

Non formal education program

Instruction of basic health and science

Children did not regard their parents decision of schooling as choiceless

TAKEAWAYS

Child labor in India is largely a preindustrial, precapitalistic labor force

Child labor in India is not the product of industrialism and capitalism, but represents the persistence of the traditional role of the child as a worker

Most child workers are illiterate

Few children outside of agriculture can be said to be apprentices learning traditional family skills – engaged in relatively new occupations

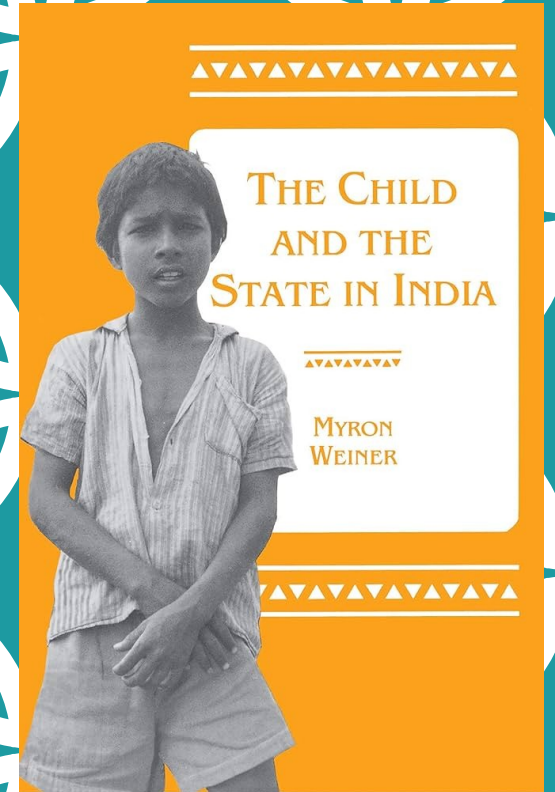
The “skills” acquired by the children are rarely those that could not be acquired at an older age. Indeed, the skills are typically of a low level: simple, routinized, manual tasks or carting



Early entrance into the labor force is no assurance of a higher wage later. Wages paid to adults are not determined by whether or not they worked as children

Restrictions on child labor has led to the sprouting of smaller factories where conditions are worse and wages are lower

Financial contributions by children to household income are often small



INDIA'S POSITION ON CHILD LABOUR

(QUICK IN UNDERSTANDING, BUT SLOW IN IMPROVEMENT)

Muskan Agarwal

IDEAL

Work in all its forms, paid or unpaid in any processes or occupations which affects the proper and full development of a child **should be prohibited for all children up to the age of 14** on an urgent basis and they be provided with quality education and enabling environment for their all-round development.

Reality

According to Census 2011, number of child laborer's in India between 5-14 years is 4.35 million (main workers) and 3.87 million (marginal workers), which comes to a total of **8.22 million.**



Legal Frameworks & Provision

INTERNATIONAL LEGAL ARRANGEMENTS

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graph TD; A[INTERNATIONAL LEGAL ARRANGEMENTS] --> B[Article 32 of UNCRC]; A --> C[ILO Convention]; A --> D[New SDG]; B --> E[Article 32 of the UNCRC "recognizes the right of the child to be protected from economic exploitation and from performing any work that is likely to be harmful or to interfere with the child's education, or to be harmful to the child's health or physical, mental, spiritual, moral or social development."]; C --> F["The ILO Convention, 1973 (No. 138) states that, 'Any work which is likely to jeopardize children's physical, mental or moral health, safety or morals (is hazardous and) should not be done by anyone under the age of 18.'"]; D --> G["The New Sustainable Development Goals urge governments to commit that 'By 2030, ensure that all girls and boys complete free, equitable and quality primary and secondary education leading to relevant and effective learning outcomes'. It also states that governments should 'Take immediate and effective measures to eradicate forced labour.'"];
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Article 32 of UNCRC

Article 32 of the UNCRC “recognizes the right of the child to be protected from **economic exploitation** and from performing any work that is likely to be harmful or to interfere with the child’s **education**, or to be harmful to the child’s health or physical, mental, spiritual, moral or social development.”

ILO Convention

The ILO Convention, 1973 (No. 138) states that, “Any work which is likely to jeopardize children’s physical, mental or moral health, safety or morals (is **hazardous** and) should not be done by anyone under the **age of 18**.”

New SDG

The **New Sustainable Development Goals** urge governments to commit that “By 2030, ensure that all girls and boys complete free, equitable and quality **primary and secondary education** leading to relevant and effective learning outcomes”. It also states that governments should “Take immediate and effective measures to **eradicate forced labour**.”

CONSTITUTIONAL FRAMEWORK

Article 24 of the Constitution of India protects children below the age of 14 against being **employed** in any hazardous activities.

Article 23 prohibits trafficking and **forced labour**.

Article 21A specifically states the right to **education** for all children between the age of 6 and 14.

Article 39 under the directive principles requires the States to ensure that children are protected against **abuse** and not forced to enter a vocation not suited to their age or strength.

Article 15 of the constitution enables the government to make such laws and policies that protect the rights of children and ensure their **well-being**.

NATIONAL PROVISION

Main Act: Child Labour (Prevention and Regulation) Act, 1986.

Details: Children are prohibited from employment in certain specified occupations and processes below the age of 14.

Other Acts



The Factories Act, 1948

Set out minimum age of employment for children and regulate working conditions such as time and



The Motor Transport Workers Act

Set out minimum age of employment for children and regulate working conditions such as time and hours of



The Bonded Labour System (Abolition) Act, 1976

Prohibits any form of bonded or forced labour in the country.



The Juvenile Justice Act, 2000

Deals with rehabilitation, care and protection of children in need of care and protection or children in conflict with law